

EXHIBIT E
BY-LAWS OF
GATEHOUSE DOCK CONDOMINIUM ASSOCIATION, INC.

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BY-LAWS
OF
GATEHOUSE DOCK CONDOMINIUM ASSOCIATION, INC.

A Corporation Not for Profit Under
the Laws of the State of Florida

ARTICLE I: APPLICABILITY

A. Scope. These By-Laws shall be applicable to Gatehouse Dock Condominium Association, Inc. (hereinafter referred to as "the Association"), a not for profit corporation organized and existing under the laws of the State of Florida, which Association has been organized for the purpose of providing for the acquisition, construction, management, maintenance and care of the Gatehouse Dock Condominium (hereinafter referred to as "the Condominium"), a condominium regime, comprised of boat docks all of which shall be used for private boat dockage, established or to be established in accordance with the laws of the State of Florida.

These By-Laws expressly are subject to the terms, provisions, conditions and authorizations contained in the Articles of Incorporation and in the Declaration of Condominium (hereinafter referred to as "the Declaration").

All of the terms used in these By-Laws shall have the same definitions and meaning as those set forth in the Declaration, unless herein provided to the contrary, or unless the context otherwise requires. Whenever the context so permits, the singular shall include the plural, the plural shall include the singular, and the use of any gender shall be deemed to include all genders.

B. Compliance. Each present and future owner and tenant, guest, licensee, servant, agent, employee and any other person who shall be permitted to use the facilities of the Association or a dock shall comply strictly with these By-Laws and the Rules and Regulations issued by the Association, as such may be lawfully amended from time to time, and with the covenants, conditions and restrictions set forth in the Declaration and the deed to the dock. Ownership, rental or occupancy of any dock conclusively shall be deemed to mean that the owner, tenant or occupant has accepted and ratified these By-Laws and the Rules and Regulations of the Association and will comply with them. Failure to comply with any of the same shall be grounds for a civil action to recover sums due, for damages or injunctive relief, or both, maintainable by the Association on behalf of the dock owners.

ARTICLE II: PRINCIPAL OFFICE AND SEAL

A. Principal Office. The principal office of the Association shall be located initially at the Ocean Reef Club, Key Largo, Florida, but thereafter may be located at such other suitable and convenient place as shall be permitted by law and designated by the Board of Administrators.

B. Seal. The seal of the Association shall bear the name of the Association, the word "Florida," the words "Corporation Not for Profit" and the year of incorporation. An impression of the seal is as follows:

ARTICLE III: MEMBERS AND MEMBERSHIP

A. In General. The requirements and procedures for admission, voting and termination of membership set forth in the Articles of Incorporation are incorporated herein by reference.

B. Designation of Voting Member. If a dock is owned by one person, his right to vote shall be established by the recorded title to the dock. If a dock is owned by more than one person, the person entitled to cast the vote for the dock shall be designated in a certificate signed by all of the record owners of the dock and filed with the Secretary of the Association. If a dock is owned by a corporation, the person entitled to cast the vote for the dock shall be designated by a certificate signed by the president or vice president

of the corporation and attested by the corporate secretary or assistant secretary and filed with the Secretary of the Association. The person so designated to cast the vote for a dock shall be known as the "voting member." If such a certificate is not on file with the Secretary of the Association for a dock owned by more than one person or by a corporation, the vote of the dock concerned shall not be considered in determining the requirement for a quorum, or for any purpose requiring the approval of a person entitled to cast the vote for the dock, except to such dock as owned by a husband and wife. Such certificate shall be valid until revoked or superseded by a subsequent certificate, or until a change in the ownership of the dock concerned.

A husband and wife owning a dock jointly shall have the following options:

1. They may designate a voting member who may cast their vote and be counted for purposes of a quorum.
2. If they do not designate a voting member and both are present at a meeting and are unable to concur in their decision upon any subject requiring a vote, they shall lose their right to vote on that subject at that meeting.
3. If they do not designate a voting member and only one is present at a meeting, the spouse who is present may cast the dock vote without establishing the concurrence of the absent spouse.

Should two (2) or more docks be used by a single owner as one (1) dwelling dock, by connecting the same in a manner approved by the Board, such use shall not in any manner affect or destroy the separateness of such docks for voting or any other purpose.

C. Limitations on Membership. Except as otherwise provided, membership in the Association shall be limited to the dock owners or co-owners.

In the event that a member shall lease or permit another to occupy its dock, the tenant or occupant shall not vote in the affairs of the Association except as the member shall permit the tenant or occupant to exercise the proxy vote of the member nor shall such tenant or occupant be counted for purposes of a quorum.

Every transfer of title in accordance with the Declaration and the Condominium Act to the member's dock shall include membership in the Association, and upon making such transfer, the previous owner's membership shall terminate automatically.

Except as provided above, membership in the Association may not be assigned or transferred and any attempted assignment or transfer thereof shall be void and of no effect.

D. Voting; Proxies. Each member shall be entitled to one vote for his particular dock on each matter for which a vote is taken. All decisions, unless otherwise provided herein or in the Declaration, shall require for passage the affirmative vote of at least a majority of the members present in person or by proxy.

Votes may be cast either in person or by proxy. Proxies must be in writing and filed with the Secretary before the time appointed for each meeting in the notice thereof. Proxies shall be valid only for the particular meeting designated thereon.

Approval or disapproval by a dock owner upon any matter, whether or not the subject of an Association meeting, shall be expressed by the person who would cast the vote if in an Association meeting.

Except where otherwise required by the Articles of Incorporation, these By-Laws, the Declaration or law, the affirmative vote of the owners of a majority of the docks represented at any duly called membership meeting at which a quorum is present shall be binding upon the members.

E. Annual Meetings. Annual meetings of the members shall be held on the 1st Wednesday of March at ten o'clock A.M. at the Ocean Reef Club or at

such other time, date, or place as may be fixed by the Board for the purpose of electing the Board and transacting such other business as may properly come before the meeting.

F. Special Meetings. Except for meetings concerning the Budget or the removal of Board members, special meetings of the members shall be held whenever called by the President or Vice President or by a majority of the Board, and must be called by such officers upon receipt of a written request from members of the Association owning a majority of the docks.

G. Location of Meetings. All annual and special meetings shall be held at the principal office of the Association or at such other suitable and convenient place as may from time to time be fixed by the Board and designated in the notices of such meetings.

H. Notices. The Secretary shall mail notices of annual and special meetings to each member directed to his last known post office address as shown on the records of the Association, by ordinary mail, postage prepaid. Such notice shall be mailed not less than fourteen (14) nor more than thirty (30) days before the date of such meeting and shall state the date, time and place of the meeting and for special meetings the purpose or purposes thereof. In lieu of mailing notice as herein provided, such notice may be delivered by hand to the members or left at their residences in their absence. If presented personally, receipt of such notice shall be signed by the member, indicating the date on which such notice was received by him. In addition, such notice shall be posted in a conspicuous place on the Condominium property at least fourteen (14) days prior to the meeting.

Any member may waive in writing such notice; and such waiver, when filed in the records of the Association, shall be deemed equivalent to the receipt of such notice by such member. If any meeting cannot be organized because a quorum has not attended, or because the greater percentage of the membership required to constitute a quorum for particular purposes has not attended (whenever the latter percentage of attendance may be required as set forth in the Articles of Incorporation, these By-Laws or the Declaration), the members who are present, either in person or by proxy, may adjourn the meeting from time to time until a quorum is present. Attendance at a meeting either in person or by proxy constitutes waiver of notice.

I. Quorum. Members owning a majority of the docks shall constitute a quorum. The joinder of a member in the action of a meeting by signing and concurring in the minutes thereof shall constitute the presence of such person for the purpose of determining a quorum.

J. Conduct of Meetings.

1. The President, or in his absence, the Vice President, shall preside at all meetings; and, in the absence of both of them, the presiding officer shall be the officer designated by the Board.
2. The order of business at annual meetings and, as far as practical, at other meetings shall be:
 - (a) Roll call and proxy certification;
 - (b) Proof of notice of meeting or waiver of notice;
 - (c) Reading and disposal of any unapproved minutes;
 - (d) Report of officers;
 - (e) Reports of committees;
 - (f) Appointment of inspectors of election by chairman;
 - (g) Election of Administrators;
 - (h) Unfinished business;

(i) New business;

(j) Adjournment.

ARTICLE IV: BOARD OF ADMINISTRATION

A. Authority and Composition. The affairs of the Association shall be governed by a Board of Administration consisting of three (3) persons, at least two (2) of whom shall be members of the Association.

B. Representation. When dock owners other than Developer own fifteen percent (15%) or more of the docks in the Condominium, such dock owners shall be entitled to elect not fewer than one-third (1/3) of the persons on the Board of Administration. Such dock owners shall be entitled to elect not fewer than a majority of the Administrators:

1. Three (3) years after fifty percent (50%) of the docks that will be operated ultimately by the Association have been conveyed to purchasers;
2. Three (3) months after ninety percent (90%) of the docks that will be operated ultimately by the Association have been conveyed to purchasers;
3. When all the docks that will be operated ultimately by the Association have been completed, some of them have been conveyed to purchasers, and none of the others being offered for sale by the Developer in the ordinary course of business; or
4. When some of the docks have been conveyed to purchasers and none of the others being constructed or offered for sale by Developer in the ordinary course of business, whichever occurs first.

Developer shall have the right to elect a majority of the Administrators until the occurrence of any of the above events. Developer shall be entitled to elect at least one (1) Administrator as long as Developer holds for sale in the ordinary course of business at least five percent (5%) of the docks in the Condominium.

The rights reserved to Developer to elect and maintain Administrators may be assigned to and exercised by the successor(s) in interest of Developer.

C. Election Procedures Generally. All Administrators not chosen by Developer shall be elected by a majority of the votes cast at the annual meeting of the members of the Association immediately following Developer's election of the Administrators.

Voting shall be non-cumulative, i.e. one (1) vote per dock for each place to be filled on the Board; no dock owner may cast more than one (1) vote per dock for any nominee.

D. Vacancies. Vacancies in the Board may be filled, until the date of the next annual meeting, by selections by the remaining Administrators except that should any vacancy in the Board be created in any position previously filled by a person elected by Developer, such vacancy shall be filled by Developer electing by written instrument delivered to any officer of the Association, the successor Administrators to fill the vacancy for the unexpired term.

E. Terms of Office. The term of office of each Administrator, whether elected by Developer or by the membership, shall be for one (1) year, expiring at the next annual meeting of the membership, or when successors are duly elected and qualified, or any shorter period in the event of removal in the manner provided herein or by law.

Developer shall have the absolute right to replace any Administrators chosen by it. Such replacement of Administrators shall be made by written instrument delivered to any officer of the Association, specifying the

name of each person designated as successor to each Administrator so removed. The removal of any Administrator and designation of his successor shall be effective immediately upon such delivery.

F. Organizational Meeting. The organizational meeting of a newly elected Board shall be held within ten (10) days of their election at such time and at such place as shall be fixed at the meeting at which they were elected. No further notice of the organizational meeting shall be necessary, provided a quorum shall be present.

G. Regular Meetings. Regular meetings of the Board may be held at such time and place as shall be determined from time to time by a majority of the Board. Notice of regular meetings shall be given to each Administrator personally or by mail, telephone or telegram, at least three (3) days prior to the day specified for such meeting.

H. Special Meetings. Special meetings of the Board may be called by the President, and must be called by Secretary at the written request of any two (2) Administrators. Not less than three (3) days' notice of a meeting shall be given to each Administrator, personally or by mail, telephone or telegram, which notice shall state the time, place and purpose of the meeting.

I. Waiver of Notice. Any Administrator may waive notice of a meeting and such waiver shall be deemed equivalent to the receipt of notice by each such Administrator.

J. Meetings Open to Dock Owners. Meetings of the Board whether regular or special, shall be opened to all dock owners. Adequate notice of all such meetings shall be posted conspicuously on the Condominium property at least forty-eight (48) hours in advance of each meeting except in an emergency.

K. Quorum. A quorum at a Board meeting shall consist of the Administrators entitled to cast a majority of the votes of the entire Board. Matters approved by a majority of the votes present at a meeting at which a quorum is present in person or by telephone communication shall constitute acts of the Board, except as specifically provided otherwise in the Articles of Incorporation, these By-Laws or the Declaration. If any meeting cannot be organized because a quorum has not attended, the Administrators who are present may adjourn the meeting from time to time until a quorum is present. At any adjourned meeting, business which might have been transacted at the meeting as originally called may be transacted without further notice. Administrators may join by written concurrence in any action taken at a meeting of the Board, but such concurrence may not be used for the purposes of creating a quorum.

L. Conduct of Meetings. The Chairman of the Board, if one has been elected, shall preside over all Board meetings; otherwise the President shall preside. In the absence of the presiding officer, the Administrators present shall designate one of their number to preside.

M. Compensation. Compensation of the Administrators, if any, shall be determined by the members of the Association.

N. Powers. All of the powers and duties of the the Association shall be exercised by the Board, including those existing under the common law and statutes, the Articles of Incorporation of the Association, these By-Laws and the Declaration. Such powers and duties shall include the following:

1. To make, levy and collect assessments from members and members' docks to defray the costs of the Condominium, and to use the proceeds of such assessments in the exercise of the powers and duties granted to the Association;
2. To maintain, repair, replace, operate and manage the Condominium wherever the same is required to be done and accomplished by the Association for the benefit of its members;
3. To reconstruct improvements after any casualty, and to further improve the property, real and personal;

4. To make and amend regulations governing the use of the property, real and personal, in the Condominium, so long as such regulations or amendments thereto do not conflict with the restrictions and limitations placed upon the use of such property under the terms of the Articles of Incorporation and the Declaration;
5. To acquire and enter into leases and agreements of every nature, whereby the Association acquires leaseholds, memberships and other possessory or use interests in lands or facilities, including recreational and communal facilities, whether or not contiguous to the lands of the Condominium, to provide enjoyment, recreation, or other use or benefit to the dock owners, or as may be deemed by the Board to be in the best interests of the Association, and further including any and all contracts with Developer and/or its successors in interest furnishing services to the Condominium and its members for compensation, subject to such conditions and limitations as the Association and Developer shall deem appropriate.

O. Removal. Any Administrator elected by the membership may be removed, with or without cause, at any time by a vote of the members owning a majority of the docks, at any special meeting called for such purpose of the owners of ten percent (10%) of the docks. Only Developer shall have the right to remove an Administrator appointed by it.

P. First Board of Administration. The first Board shall be comprised of three (3) persons designated to act and serve as Administrators in the Articles of Incorporation, who shall serve until their successors are elected at the first annual meeting of the members of the Association called after the Declaration has been duly recorded.

The undertakings and contracts authorized by the first Board shall be binding upon the Association in the same manner as though such had been authorized by the first duly elected Board, so long as such undertakings and contracts are within the scope of the powers and duties which may be exercised by the Board in accordance with all applicable Condominium documents.

Should any member of the first Board be unable to serve for any reason, the remaining members of the Board shall have the right to designate a party to act and serve as Administrator for the unexpired term of the Administrator unable to serve.

ARTICLE V: OFFICERS

A. Enumeration. The Board shall elect a President, Secretary and Treasurer, and as many Vice Presidents, Assistant Secretaries and Assistant Treasurers as the Board shall determine. The President shall be elected from among the membership of the Board and shall be an Administrator, but no other officer need be a member or Administrator. The same person may hold two offices, except for the following combinations: (1) President and Vice President; (2) President and Secretary or Assistant Secretary.

B. Election. The officers shall be elected annually by the Board at the organizational meeting of each new Board and shall hold office until their successors have been elected and qualified.

C. The President. The President shall be the chief executive officer of the Association. He shall have all of the powers and duties which are usually vested in the office of President of an association, including, but not limited to, the power to appoint committees from among the members from time to time, as he may in his discretion determine appropriate, to assist in the conduct of the affairs of the Association.

D. The Vice President. The Vice President shall, in the absence or disability of the President, exercise the powers and perform the duties of President. He also generally shall assist the President and exercise such other powers and perform such other duties as shall be prescribed by the Board.

E. The Secretary and Assistant Secretary. The Secretary shall: (1) keep the minutes of all proceedings of the Administrators and the members; (2) attend to the giving and serving of all notices to the members and Administrators, and such other notices required by law; (3) maintain custody of the seal of the Association and affix the same to instruments requiring a seal when duly signed; (4) keep the records of the Association, except those of the Treasurer; and (5) perform all other duties incident to the office of Secretary and as may be required by the Administrators or President. The Assistant Secretary shall perform the duties of Secretary when the Secretary is absent. The minutes of all meetings of dock owners and the Board shall be kept by the Secretary in a book which shall be available for inspection by dock owners (or their authorized representatives), and the Administrators at any reasonable time. The Association shall retain these minutes for a period of not less than seven (7) years.

F. The Treasurer. The Treasurer shall: (1) have custody of all of the property of the Association, including funds, securities and evidences of indebtedness; (2) keep the assessment rolls and accounts of the members; (3) keep the books of the Association in accordance with good accounting practices; and (4) perform all other duties incident to the office of Treasurer.

G. Compensation. The compensation of all officers and employees of the Association shall be fixed by the Board. This provision shall not preclude the Board from employing an Administrator as an employee or from contracting with Administrators for the management of the Condominium.

H. Removal. Any officer may be removed from office at any time, with or without cause, by a majority vote of the Board.

ARTICLE VI: FINANCE

A. Bank Accounts. The depository of the Association shall be such bank as is designated from time to time by the Board. Withdrawal of monies from accounts shall be only by checks signed by such persons as are authorized by the Board.

B. Fiscal Year. The fiscal year shall be the calendar year.

C. Budget. The Board shall adopt a budget for each fiscal year which shall contain estimates of the cost of performing the functions of the Association, including, without limitation:

1. the common expenses budget, including, without limitation, the estimated amounts necessary for: (a) maintenance and operation of the common elements; (b) walkways; (c) office expenses; (d) management and administration; (e) utility services; (f) casualty and liability insurance; (g) operating and replacement reserves; (h) leaseholds, membership and other interests in lands or facilities to provide enjoyment, recreation or other use or benefit to dock owners.
2. proposed assessments against each member.

A copy of the proposed budget and proposed assessments and written notice of the time and place of the meeting to consider the budget shall be submitted to each member not less than fourteen (14) nor more than thirty (30) days prior to the meeting at which the budget will be considered. The meeting shall be open to all members. As long as Developer has appointed a majority of the Board members, the Board shall not impose an assessment for any year greater than one hundred fifteen percent (115%) of the prior fiscal year's assessment without the approval of a majority of all dock owners.

If the budget is amended before the assessments are made, a copy of the amended budget shall be furnished to each member. Failure to deliver a copy of any budget or amended budget to each member shall not affect the liability of any member for any such assessment, nor shall delivery be a condition precedent to the effectiveness of the budget and assessments levied pursuant thereto. Nothing herein contained shall be construed as restricting the right of the Board, at any time, in its sole discretion, to levy any additional assessment if the budget originally adopted shall appear to be insufficient

to pay costs and expenses of operation and management or if required by any emergencies.

D. Audits. An audit of the accounts of the Association may be made annually. If the Board so designates, such audit shall be made by a certified public accountant. A copy of such accountant's report or other audit shall be furnished to each member not later than March 15 of the year following the year for which the report is made.

E. Assessments. The dock owners shall be assessed their shares of the common expenses. Such assessments shall be made against the dock owners in such installments and at such times as may be determined by the Board, which times shall be not less frequently than quarterly, and which amounts shall not be less than required to provide funds in advance for payment of all of the anticipated current operating expenses and for all of the unpaid operating expenses previously incurred. The payment of any such assessment shall be in default if it is not paid before its due date.

An assessment roll shall be maintained in a set of accounting books in which there shall be an account for each dock. Such accounts shall be designated: (1) the name and address of each owner; (2) the amount of each assessment against each owner; (3) the dates when assessments come due; (4) the amount paid upon the account; and (5) the balance due upon assessments.

F. Fidelity Bonds. Fidelity bonds may be required by the Board for all officers and employees of the Association and for any contractor handling or responsible for Association funds. The amount of each such bond shall be determined by the Board but shall be at least \$10,000. The premiums on such bonds shall be paid by the Association.

ARTICLE VII: INDEMNIFICATION OF ADMINISTRATORS AND OFFICERS

To the extent permitted by Florida law, every Administrator and every officer shall be indemnified by the Association against all expenses and liabilities, including counsel fees, reasonably incurred by or imposed upon him in connection with any proceedings to which he may be a party, or in which he may become involved by reason of his being or having been an officer or Administrator, or any settlement thereof, whether or not he is an Administrator or officer at the time of incurring such expenses or liabilities, except in such cases wherein the Administrators or officer is adjudged guilty of willful misfeasance or malfeasance in the performance of his duties, provided that in the event of a settlement, the indemnification shall apply only when the Board approves such settlement and reimbursement as being in the best interests of the Association. The foregoing right of indemnification shall be in addition to all other rights to which such officer or Administrator may be entitled.

ARTICLE VIII: PARLIAMENTARY RULES

Roberts Rules of Order (latest edition) shall govern the conduct of corporate proceedings when not in conflict with the Articles of Incorporation and these By-Laws or with the laws of the State of Florida.

ARTICLE IX: RULES AND REGULATIONS

Annexed hereto and made a part hereof are rules and regulations concerning the use of the Condominium. The Board may from time to time modify, amend or add to such rules and regulations, except that owners of a majority of the docks present and voting at a meeting at which a quorum is present may overrule the Board with respect to any such modification, amendment or addition. Copies of such modified, amended or additional rules and regulations shall be furnished by the Board to each dock owner not less than thirty (30) days prior to the effective date thereof.

ARTICLE X: AMENDMENTS

Amendments to these By-Laws may be proposed by the Board acting upon majority vote or by members owning a majority of the docks in the Condominium, whether meeting as members or by a writing signed by them.

No By-Law shall be amended by reference to its title or number only. Proposals to amend existing By-Laws shall contain the full text of the By-Laws to be amended; new words shall be inserted in the text underlined, and words to be deleted shall be lined through with hyphens. However, if the proposed change is so extensive that this procedure would hinder, rather than assist, the understanding of the proposed amendment, it is not necessary to use underlining and hyphens as indicators of words added or deleted, but, instead, a notation must be inserted immediately preceding the proposed amendment in substantially the following language: "Substantial rewording of bylaw. See bylaw . . . for present text."

Such proposed amendment(s) shall be transmitted to the President (or other officer in the absence of the President) who shall thereupon call a special joint meeting of the Board and the membership for a date not sooner than twenty (20) days nor later than sixty (60) days from receipt by such officer of the proposed amendment(s). The Secretary shall give to each member written notice of such meeting in the same form and in the same manner as notice of the call of a special meeting of the members is required as herein set forth.

In order for such amendment(s) to become effective, the same must be approved by an affirmative vote of the members owning not fewer than two-thirds (2/3) of the docks in the Condominium. Thereupon such amendment(s) shall be transcribed, certified by the President and Secretary, and a copy thereof recorded in the Public Records of Monroe County, Florida, within ten (10) days from the date of approval of such amendment(s) by the members.

At any meeting held to consider such amendment(s), the written vote of any member shall be recognized even if such member is neither in attendance nor represented by proxy, provided that such written vote is delivered to the Secretary at or prior to such meeting.

In the event that the members owning the number of docks necessary to pass any amendment(s) shall execute any instrument amending these By-Laws, the same shall constitute a valid amendment and it shall not be necessary for the meeting otherwise prescribed above to be held. A copy of such amendment(s), bearing the signature of the member(s), and certified by the President and the Secretary as being the amendment(s) so adopted by such members, shall be recorded in the Public Records of Monroe County, Florida, within ten (10) days from the date of approval of such amendment(s).

Nonmaterial errors or omissions in the amendment process shall not invalidate an otherwise properly promulgated amendment.

Notwithstanding the foregoing provisions, no amendment to these By-Laws to abridge, amend or alter the right of Developer to elect members of the Board, as provided in Article IV hereof, may be adopted or become effective without the prior written consent of Developer.

Attached hereto are the initial Rules and Regulations for Gatehouse Dock Condominium Association, Inc.